Forbes Shire Council Development Control Plan 2013

Chapter 16 - Agri-Tourism

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1.General controls

This section contains general provisions that apply to development for farm experience premises, farm gate premises and farm stay accommodation. They also apply to development for roadside stalls unless specified only for farm experience premises, farm gate premises or farm stay accommodation. Specific controls foreach of these land uses are provided in the following sections.

Term	**Definition as defined in the FLEP2013**
Farm Experience Premises -	means a building or place— (a) on a commercial farm, and (b) ancillary to the farm, and (c) used to provide visitors to the farm, on a commercial basis, with small-scale and low-impact tourist or recreational activities, including the following, but not including motor sports— (i) horse riding, (ii) farm tours, (iii) functions or conferences, (iv) farm field days. **Note—**Farm experience premises are a type of ***agritourism***—see the definition of that term in this Dictionary.
Farm Gate Premises	(a) means a building or place— (i) on a commercial farm, and (ii) ancillary to the farm, and (iii) used to provide visitors to the farm, on a commercial basis, with agricultural products predominantly from the farm, supplemented by products from other farms in the region, or with services or activities related to the products, including the following— (A) processing, packaging and sale of the products, but not the processing of animals, (B) the preparation and serving, on a retail basis, of food and drink to people for consumption on the premises, whether or not liquor, take away meals and drinks or entertainment are also provided, (C) tastings or workshops,

	(D) the provision of information or education related to the products, and (b) includes cellar door premises. **Note—**Farm gate premises are a type of ***agritourism***—see the definition of that term in this Dictionary.
Farm Stay Accommodation	means a building or place— (a) on a commercial farm, and (b) ancillary to the farm, and (c) used to provide temporary accommodation to paying guests of the farm, including in buildings or moveable dwellings. **Note—**Farm stay accommodation is a type of ***tourist and visitor accommodation***—see the definition of that term in this Dictionary.
Roadside Stalls	means a place or temporary structure used for the retail sale of agricultural produce or hand crafted goods (or both) produced from the property on which the stall is situated or from an adjacent property

1.1 General

1.1.1 Background

Agritourism is generally a tourism-related experience that connects agricultural products, people or places with visitors to a farm. Agritourism has an important role in creating a more direct connection between the primary producer and the end consumer. Through tours, farm stays and other nature-based activities, agritourism allows regional economies to showcase what is special about a region and provides a connection for the visitors to the land.

Agritourism can include direct shopfront outlets with produce tastings, regional markets, farm and winery tours, cooking classes, food and wine festivals, restaurants sourcing local produce, self-picking experiences and farm gate sales. It can also include farm stays, camping and other on-farm accommodation, farm tours and activities, and events based on farms for their scenic quality, such as weddings.

Distinct from other commercial or tourism uses, agritourism has an essential connection with the agricultural use of the land. Although the agricultural use may be seasonal, the dominant purpose of the land must remain a commercial farm on which agriculture is undertaken. Agritourism must be ancillary (secondary) to the agriculture being undertaken on the farm. This is important to ensure agricultural land is retained in NSW.

Under the planning system, agritourism is defined to mean farm experience premises and farm gate premises. In this document, all subsequent references to agritourism means farm experience premises and farmgate premises.

Across regional NSW, there is a rich variety in the character and identity of rural areas, underpinned by diverse landscapes, stories and cultures to be acknowledged and preserved. The design of the buildings, structures and landscape plays an important role in creating memorable experiences and places. The visual character of existing built form, especially historical built forms, together with the character of the surrounding landscape contributes to a sense of place which is distinct and unique and essential to that place's identity.

1.1.2 Objectives

a. To allow for tourism development on farms that complements the agricultural use of the land.
b. To ensure farm gate premises, farm experience premises and farm stay accommodation are secondary to a commercial farm and do not constrain the agricultural activities on the property or on adjacent lands.
c. To ensure farm gate premises, farm experience premises and farm stay accommodation are compatible with the rural character and heritage of the property and do not unnecessarily intrude on the landscape.

1.1.3 Controls

1. Development for farm experience premises, farm gate premises or farm stay accommodation is to be compatible with the commercial operations of the farm and not restrict the day-to-day functions of the farm.
2. The design of buildings and structures should enhance the sense of place and reinforce the rural character through the selection of materials and design quality.
3. The building design and materials should complement and integrate with the existing landscape including scenic values.
4. The design and placement of buildings, structures and moveable dwellings for farm experience premises, farm gate premises or farm stay accommodation should be clustered on the property where possible, to minimise the amount of land occupied by the development.

1.2 Location

1.2.1 Background

There can be conflict between farming activities carried out on the farm and on adjoining properties and other activities on the farm. Farm gate premises, farm experience premises or farm stay accommodation could result in complaints about the effects of farming operations on the enjoyment of visitors to the farm. It is important to protect operating farms and on-going viability of traditional agricultural uses. Some sites or localities on the farm may therefore not be appropriate for some development.

Farm experience premises, farm gate premises or farm stay accommodation also have the potential to have unreasonable impacts on nearby rural residents, particularly activities that generate significant traffic, create substantial noise, or operate at night.

Where a development proposal is likely to result in conflict with adjoining land uses, the development application should be accompanied by supporting information which identifies potential the conflict and demonstrates how any associated impacts have been mitigated. This could be achieved by adopting setbacks and buffer areas, or by other means.

Development on farmland can also take advantage of the existing features on the land and respond to constraints of the land to minimise environmental and amenity impacts.

1.2.2 Objectives

a. To reduce land use conflicts by separating farm experience premises, farm gate premises or farm stay accommodation development from existing land uses on the property or on nearby land
b. To respond to environmental values, risks and constraints including environmentally sensitive lands that involve native vegetation and habitats, waterways, water sources and drinking water catchments

1.2.3 Controls

1. The development is not to restrict the day-to-day functions of adjacent farms.
2. A building, structure, moveable dwelling or activity for farm experience premises, farm gate premises or farm stay accommodation must be located:
    a. a minimum of 250 metres from residential accommodation on adjacent land or on land that is separated from the landholding by a road
    b. a minimum of 50 metres from a property boundary or road
    c. a minimum of 50 metres from a waterway
    d. A minimum of 250 metres from a boundary for land used for the purpose of forestry, intensive livestock agriculture, intensive plant agriculture, mines, extractive industries, railway lines or rural industries.
3. A development maybe closer than the above distances to property boundaries and roads if it can be demonstrated that measures incorporated into the design, such as through boundary planting, will appropriately mitigate impacts.
4. The design and placement of buildings, structures and moveable dwellings should consider the existing features of the land and climate, including minimising risk from hazards and weather events.
5. Buildings and structures should not be placed on the ridgeline or peak of a hill or other visually prominent areas.
    - *Note: Consider the NSW Department of Primary Industries' Buffer Zones to Reduce Land Use Conflict with Agriculture: An Interim Guideline (2018) when setting distances between agriculture and sensitive receivers.*

1.3 Vegetation and landscaping

1.3.1 Background

Over time, native vegetation has been modified and fragmented as land was developed for grazing and agriculture and by introduced plants and animals. Retaining a healthy mix of native plants is important for the health and long-term survival of ecosystems, farm productivity and human wellbeing. Plants can provide sight and noise barriers, discourage access to unsafe areas and help define the space for an activity.

Development for the purposes of farm gate premises, farm experience premises and farm stay accommodation may result in higher building densities than an agricultural use which can sometimes constrain opportunities to achieve good landscaping outcomes. It is important that existing vegetation and desired future landscape outcomes are considered in detail at the development design stage, including within any parking areas for a proposed development.

1.3.2 Objectives

a. To avoid the clearing and removal of native flora and fauna, in particular threatened species and threatened ecological communities.
b. To ensure buildings, structures and moveable dwellings are sited and designed to complement, enhance and protect existing native vegetation, features and landscapes.
c. To minimise the impacts of a development on the environment, including existing vegetation, features, natural resources and biodiversity.
d. To ensure landscaping is visually complimentary to the development.

1.1.3 Controls

1. Existing mature trees and vegetation are to be retained where possible.
2. Should significant clearing be proposed a vegetation management plan is to be produced which demonstrates which existing native flora (including tree and canopies and underground root systems) and fauna will be protected and maintained during the construction or erection of any new buildings, structures, moveable dwellings or facilities for farm gate premises, farm experience premises or farm stay accommodation and during the ongoing operation of the premises or accommodation.
3. Landscaping should be used to minimise the physical and visual dominance of development for farm gate premises, farm experience premises or farm stay accommodation, including any carparking and vehicle circulation areas, and should include plants native to the local area.

Water Supply and Management.

1.4.1 Background.

The increased number of people on a rural property from a development may strain existing water supply to the site. Sufficient supply of safe drinking water without unreasonable adverse environmental consequences are fundamental to the ongoing use of the land for farm gate premises, farm experience premises and farm stay accommodation. For properties that do not have access to town water, supporting information that accompanies a development application will need to demonstrate alternative solutions to service the needs of visitors and guests.

1.4.2 Objectives.

a. To ensure adequate arrangements for water supply for visitors and guests to farm gate premises, farm experience premises and farm stay accommodation.
b. To preserve water supply from contaminants generated by visitors and guests to farm gate premises, farm experience premises, farm stay accommodation and roadside stalls

1.4.3 Controls.

1. Where the site is not connected to town water, a water supply and management plan is required to demonstrate adequate potable water supply, both quality and quantity, is available for the proposed use of a site for farm experience premises, farm gate premises or farm stay accommodation. This water supply is to be in addition to water required for firefighting purposes.
2. Development is not to adversely impact existing water supplies for residential and primary production uses on the landholding.

1.5 Hazards

1.5.1 Background

Most visitors and guests to farm gate premises, farm experience premises and farm stay accommodation will not be aware of the potential risks of bush fire and flooding and will not be familiar with the local area. They will need assistance on matters such as when to evacuate, where to go and how to get there when these types of events occur.

A bushfire and flood safety plan will ensure the farm gate premises, farm experience premises or farm stay accommodation will be ready for a natural hazard event and ensure the safety of visitors to the property. Restricting the use of high risk, a reason the farm will decrease the risk further. Development on bush fire prone land is to consider the *Planning for Bush Fire Protection* prepared by the *NSW Rural Fire Service*. Development on a floodplain or on flood prone land is to consider the provisions of the Floodplain Development Manual and *Forbes Development Control Plan 2013, Chapter Four: Flooding and Flood Affected Land.*

Tourist accommodation, such as farm stay accommodation, is a *'special fire protection purpose'* under Section 100B of the *Rural Fires Act 1997* and requires a bush fire safety authority fit is to be carried out on bush fire prone land. A development application that requires a bush fire safety authority under Section 100B is integrated development under the *Environmental Planning and Assessment Act 1979* and will be referred to the NSW Rural Fire Service.

Previous uses of rural land, in particular old farm sheds, may contain traces of chemicals that provide a risk to human health. *State Environment Planning Policy (Resilience and Hazards) 2021* requires consideration of whether the land is contaminated from past land uses, and whether the site is currently suitable for the proposed land use. A development application for farm gate premises, farm experience premises or farm stay accommodation will need to provide evidence of any remediation of contaminated land.

1.5.2 Objectives

a. To ensure development is located to minimise exposure to natural and environmental hazards, including bush fire, flooding and site contamination.
b. To protect any part of a development that could be affected by natural and environmental hazards, including bushfire, flooding and site contamination
c. To ensure the safety of visitors who could be adversely affected by natural and environmental hazards, including bush fire, flooding and site contamination, for the duration of their stay or visit.
d. To provide for safe evacuation assembly points and egress pathways.
e. To ensure site contamination is identified and appropriately and effectively remediated before the land is used.

1.5.3 Controls

1. A development is not to be located within high bushfire or flooding hazards.
2. For development for farm experience premises, farm gate premises and farm stay accommodation on bush fire prone land:

a. a water tank dedicated for firefighting purposes with a minimum volume of 22,000L as required by *Planning for Bush Fire Protection*, published by the NSW Rural Fire Service, must be provided on the property.
b. a bush fire emergency evacuation plan is to identify when the premises will be on alert and will close, evacuation procedures and assembly points, proposed signage, measures to protect human life and property in the event of bush fire, any vegetation hazard clearing needed, contact details for emergency services and any bush fire maintenance measures required.

3. For development for farm experience premises, farm gate premises and farm stay accommodation on flood affected land, a flood evacuation plan is to identify when the facility will be on alert and will close, evacuation procedures and assembly points, proposed signage, measures to protect human life and property in the event of flooding, contact details for emergency services and any maintenance measures required.
4. Evacuation routes from the location of a development to a main road or alternate point of refuge are to avoid flood liable land and bush fire prone land where practicable.
5. Where a development is proposed on land where contamination is suspected or has been identified, Council's requirements in the *Forbes Development Control Plan 2013* apply.

1.6 Waste management

1.6.1 Background

Waste generated during the development and the ongoing use of farm gate premises, farm experience premises and farm stay accommodation needs to be thoughtfully managed, and recycled where possible, to ensure waste does not contaminate the farm or the neighbouring and downstream environments.

An increased number of people visiting a farm for farm stay accommodation, farm experience premises or farm gate premises may strain existing effluent management on rural properties. Development applications for properties that do not have access to town sewerage connections will need to provide supporting information that demonstrates solutions to service the needs of visitors and guests. The safe management of effluent and trade waste without unreasonable adverse environmental consequences is fundamental to the ongoing use of the land.

Note: The Local Government Act 1993 requires on-site effluent treatment and disposal systems to be approved by Council before being installed, constructed or modified

1.6.2 Objectives

a. To manage waste in an environmentally sensitive manner.
b. To ensure management of effluent waste is not detrimental to the local environment

1.6.3 Controls

1. Development must minimise any impacts on the natural environment and visitor safety caused by waste, effluent disposal and potential contaminants.
2. A waste management plan for the ongoing use of farm gate premises, farm experience premises or farm stay accommodation is to provide:
   a. details of the business.
   b. waste types to be managed including through containment, recycling, re-use and landfill.

c. waste collection and disposal details.
d. waste minimisation measures.
e. monitoring protocols to ensure compliance with the waste management plan.

3. All effluent waste generated by the development and its ongoing use is to be disposed:
   a. to a reticulated sewerage system connected to the landholding; or
   b. using a system of sewerage management for which the approval of Council is obtained under the *Local Government Act 1993.*
      i. *A onsite effluent report must be prepared by a suitably qualified geotechnician and submitted to Council confirming that the system is adequate for the additional users and the land supply is suitable for such an increase in users.*
4. All other waste is to be disposed at an approved waste or resource recovery facility.
5. Organic waste may be disposed of onsite if disposed in a managed composting system where odours and other pollutants are controlled and/or managed.
6. All recyclables should be separated before disposal.
7. Onsite waste storage facilities are to have sufficient capacity for the waste generated and be emptied regularly.

1.7 Biosecurity

1.7.1 Background

Increased visitation to a farm will increase the risk of pests and diseases being introduced, potentially threatening the viability of the farm, nearby farms, other industries, the environment and the economy. On-farm biosecurity plays a critical role in reducing these risks by protecting the community from the negative impacts of pests, diseases, weeds and contaminants.

It is important that biosecurity risks are considered and development adopts reasonably practical measures to prevent, eliminate or minimise potential impacts of the development on natural and built environments, social and economic impacts in the locality, and the public.

1.7.2 Objectives

a. To manage biosecurity risks from pests, disease, weeds and contaminants by effectively minimising impacts, through robust management arrangements, if they cannot be eliminated.
b. To ensure the general biosecurity duty is met.

1.7.3 Controls

1. Details of biosecurity management for the ongoing use of farm stay accommodation, farm experience premises or farm gate premises should be provided having regard to the *NSW Department of Primary Industries'* requirements, including the Farm Biosecurity Action Planner at *https://www.farmbiosecurity.com.au/toolkit/planner/.*

Note:

a. *Under the Biosecurity Act 2015, there is a general obligation on people to be aware of their surroundings and take action to prevent the introduction and spread of pests, diseases, weeds and contaminants. In addition, where a biosecurity plan has been developed at places of commercial or educational activities for intensive or extensive agriculture or horticulture, subject to certain conditions, a person including any visitors must comply with the biosecurity plan.*
b. *Council will consider relevant biosecurity guidelines to assess a development proposal and determine relevant conditions of consent for the operation of the development.*

1.8 Traffic, access and parking

1.8.1 Background

Rural roads are often soft shouldered and with high maximum speed limits. Turning in and out of a farming property in these circumstances creates a safety risk that must be managed. Traffic movements and insufficient onsite parking can affect adjoining and neighbouring residents.

The driveways of many existing rural properties may be in locations that are safe for use by the owners of the land who are familiar with the road conditions, but may not be suitable for visitors unfamiliar with the local roads.

Note: New vehicle access from a road to a property will require approval from the relevant road authority under the Roads Act 1993.

1.8.2 Objectives

a. To ensure the safety of vehicle movements associated with farm gate premises, farm experience premises or farm stay accommodation, including entry, egress and movement within a property.
b. To minimise the impact of traffic on local roads associated with farm gate premises, farm experience premises or farm stay accommodation.
c. To ensure adequate parking is available on the property for visitors and employees to farmgate premises, farm experience premises or farm stay accommodation and to deter overflow parking on local roads.
d. To ensure safety of pedestrians on a property visiting farm gate premises, farm experience premises or farm stay accommodation.

1.8.3 Controls

For development for farm experience premises, farm gate premises or farm stay accommodation:

1. An access point to the property is to demonstrate compliance with the sight distance requirements of *AS 2890.1Off-street car parking* and should be adequate to service the development.
2. All vehicles (including trucks) should be able to enter and exit the property in a forward direction.
3. All parking and loading or unloading of vehicles must occur within the property boundary.
4. The minimum number of carparking spaces to be provided is:
    a. 1 space per farm stay accommodation room or cabin, and
    b. 1 space per moveable dwelling or tent site,
    c. 1 space per 2 employees, and
    d. 1 space per 25m2 gross floor area of a building or structure for farmgate premises or farm experience premises, and
    e. 1 space per 3 visitors for any outdoor farm gate premises or farm experience premises activity, and
    f. 1 space for persons with disability or limited mobility.
5. A parking and access plan can demonstrate alternative parking ratios to the above minimum numbers that includes safe separation between visitors and heavy vehicles and farming operations.
6. Only one driveway is permitted on a property unless the property has a frontage of greater 100m and can accommodate an additional access and egress to improve:

a. traffic management on the property or on and off the road
b. separation between the farming operations and the development, or
c. resident, employee and visitor safety.

7. Car parking areas should not form a visually prominent element of the rural landscape or be highly visible from the road frontage and should be located behind the front building line.
8. Car parking areas should be finished in a surface that will allow for vehicle movements in all weather conditions, such as 150mm Council approved compacted gravel, or concrete to the satisfaction of Council.

1.9 Signage

1.9.1 Objectives

a. To ensure signage for farm gate premises, farm experience premises, farm stay accommodation or roadside stalls does not detrimentally affect the landscape or road corridor.
b. To require appropriate signage within the property boundary to assist visitors and guests relating to:
    i. the location of activities, facilities and interest points associated with farm gate premises, farm experience premises, farm stay accommodation or roadside stalls,
    ii. essential safety information including evacuation procedures in a natural disaster or other emergency.

1.9.2 Controls

1. Signage for farm gate premises, farm experience premises, farm stay accommodation or roadside stalls should be in keeping with the rural character and the nature of the operations on the landholding.
2. All signage for farm gate premises, farm experience premises or farm stay accommodation should only be located within the boundary of the landholding.
3. Business identification signs for farm gate premises, farm experience premises, farm stay accommodation or roadside stalls are limited to a maximum of 2 signs facing a road frontage on the land holding.
4. Business identification signage should only promote the business activity and the goods and services offered on the landholding.
5. Any sign must:
    a. Have a maximum height of 3metres, and
    b. Have a maximum area of 3 square metres, and
    c. if it is illuminated, have lighting that complies with *AS/NZS 4282:2019 Control of the obtrusive effects of outdoor lighting*.
6. Evacuation signage must be located near the farm gate premises, farm experience premises and farm stay accommodation, the property entrance and emergency assembly points.
7. Waypoint markers should be provided to assist visitors and guests traverse a property where farm gate premises, farm experience premises or farm stay accommodation operate.
8. Signage will only be approved for a maximum of 15 years to ensure it remains high quality and within the public interest.

1.10 Ongoing operations

1.10.1 Objectives

a. To provide for the ongoing management of farm gate premises, farm experience premises and farm stay accommodation.
b. To ensure farm gate premises, farm experience premises and farm stay accommodation minimise impacts on the natural environment and visitor safety.
c. To ensure visitors and guests have access to important safety and operational information while on a property where farm gate premises, farm experience premises or farm stay accommodation operate.

1.10.2 Controls

1) A management plan for the ongoing operation of farm experience premises, farm gate premises and farm stay accommodation is to provide:
    a. a description of the development to be carried out on the property
    b. A map of where the development will be on the property, relevant dimensions and key features on the land
    c. the proposed months, days and hours of operation of the farm gate premises, farm experience premises or farm stay accommodation
    d. the maximum number of guests a tone time for the farm gate premises, farm experience premises or farm stay accommodation, and how this will be monitored
    e. how visitors and guests will be advised to:
        i. limit impacts to the operational farm,
        ii. preserve and protect existing native flora, fauna and waterways, heritage items and Aboriginal heritage located on the property,
        iii. minimise any biosecurity risk through dispersal of weeds, seeds, insects and contaminants,
        iv. Manage their waste, and
        v. be alerted as to risks that may be present on the property such as natural hazards or changing weather
    f. measures to mitigate adverse environmental and amenity impacts
    g. the way vehicles will access the landholdings and the premises
    h. any safety hazards on the property and how they will be managed to ensure the safety of visitors and guests.

2. Farm stay accommodation

2.1 Background

Farm stay accommodation is for short term stays by visitors and guests on a commercial farm and can include the conversion of an existing building, the construction of a new building and camping intents, caravans and similar structures.

Farm stay accommodation is not a form of residential accommodation and does not create a dwelling entitlement on a landholding.

2.2 Objectives

a. To diversify the uses of agricultural land for tourist-style accommodation without adversely impacting the principal use of the land for primary production.
b. To ensure farm stay accommodation does not detract from existing environmental values, scenic landscape values, infrastructure and adjoining land uses.
c. To protect the amenity and privacy of adjoining properties, including visual and acoustic privacy, from farm stay accommodation.
d. To provide accessible farm stay accommodation suitable for people with disability or limited mobility.

2.3 General matters for consideration

1. Development should not result in noise or pollution that will have a significant adverse impact on the following on or near the land:
    a. Residential accommodation
    b. Primary production operations
    c. Other land uses.
2. Development should not have a significant adverse impact on the following on or near the land:
    a. The visual amenity or heritage or scenic values
    b. Native flora or fauna, particularly threatened species and ecological communities
    c. Water quality
    d. Traffic
    e. The safety of persons

2.4 Controls

1. Farm stay accommodation that comprises moveable dwellings (tents, caravans, camper trailers, tiny houses) must be on a landholding that is a minimum of 15 hectares.
2. A building or manufactured home for farm stay accommodation (except the use of an existing building or manufactured home) must be on a landholding that meets the requirements for a dwelling in accordance with the *Forbes Development Control Plan 2013.*
3. Farm stay accommodation, including in moveable dwellings, is limited to:
    a. maximum of 20 guests at any one time on a landholding, and
    b. a maximum stay for guests of 60 consecutive days.
    - *Note: The Codes SEPP allows a maximum 20 guests in moveable dwellings as exempt development and allows two guests over the age of 12 years in a building or manufactured home that does not have bedrooms, or guests over the age of 12 years that total two times the number of bedrooms in a building or manufactured home. The Codes SEPP also allows a maximum 21 consecutive days of stay for farm stay accommodation as exempt and complying development.*
4. The maximum number of buildings and manufactured homes used for farm stay accommodation on a landholding is 3.
5. The maximum number of moveable dwellings used for the purposes of farm stay accommodation on a landholding is 6.
6. Where there is sufficient justification having regard to land size, or for short term events, Council may consider approving additional numbers
7. To address fire safety:
    a. Building separations are to comply with the National Construction Code, and
    b. moveable dwellings are to be separated from buildings and other moveable dwellings (except tents and similar portable and lightweight temporary shelters).

8. The gross floor area of a new building or manufactured home for farm stay accommodation must not be more than 500 square metres.
9. The gross floor area of part of an existing building or manufactured home used for farm stay accommodation must not be more than 500 square metres.
    - *Note: The Codes SEPP allows a maximum 60m2 gross floor area for a change of use of a building or part of a building, for a new building or for alterations and additions to an existing building or manufactured home as farm stay accommodation under complying development.*
10. The height of a moveable dwelling used for farm stay accommodation is not to exceed 10 metres.
    - *Note: The Codes SEPP allows a maximum height of 4.5m as exempt development.*
11. The height of a building or manufactured home for farm stay accommodation is not to exceed 10 metres.
    - *Note: The Codes SEPP allows a maximum height of 4.5m for a new building and for alterations and additions to an existing building or manufactured home that has a height less than 4.5m under complying development, and the height of an existing building or manufactured home that is over 4.5m cannot be increased.*
12. Where mains water is not available, a minimum of 400L of water per bedroom for daily use is required. The 400L of water is to be provided in addition to that required for the dwelling house on the property and for firefighting purposes if on bush fire prone land.
13. One toilet per 10 staying guests in farm stay accommodation on the landholding is to be available in an accessible location. At least one toilet must be a unisex accessible toilet.
14. A building or manufactured home used for farm stay accommodation (except for the use of an existing dwelling for farm stay accommodation) must be:
    a. on the same lot as an existing lawful dwelling house, or
    b. on a lot that is not less than the minimum lot size for a dwelling house permitted under Council's LEP.

3.Farm gate premises and farm experience premises

3.1 Background

Fam gate premises comprise a building or place on a commercial farm that is used to provide visitors to the farm with agricultural products predominantly from the farm, supplemented by produce from other farms in the region, or with services or activities related to the products, including processing, packaging, serving of food and drink in a café or restaurant, tastings and workshops. Cellar door premises are a type of farm gate premises.

Farm experience premises comprise a building or place on a commercial farm that is used to provide visitors with an experience on the farm, such as events, conferences, weddings, farm field days, farm tours or creative and skills classes such as photography, yoga or astronomy.

3.2 Objectives

a. To allow for tourism and related commercial uses at a scale that does not adversely affect the principal use of land for primary production.
b. To ensure farm gate premises and farm experience premises do not detract from existing environmental values, scenic values, infrastructure and adjoining land uses.
c. To protect the amenity and privacy of adjoining properties, including visual and acoustic privacy, from farm gate premises and farm experience premises.

d. To provide for the sale of locally grown and manufactured produce in appropriate rural locations.
e. To adequately provide services and facilities for visitors and guests on the property, including accessible facilities.
f. To manage the number of visitors to a landholding to address cumulative effects of traffic on roads.

3.3 General matters for consideration

1. Development should not result in noise or pollution that will have a significant adverse impact on the following on or near the land:
    a. residential accommodation
    b. primary production operations
    c. other land uses.
2. Development should not have a significant adverse impact on the following on or near the land:
    a. the visual amenity, heritage or scenic values
    b. native flora or fauna, particularly threatened species and ecological communities
    c. water quality
    d. Traffic
    e. the safety of persons

3.4 Controls

1. The gross floor area of a building (or part of a building) for farm gate premises or farm experience premises is not to be more than 200 square metres.
2. The total footprint of all buildings used for farm gate premises and farm experience premises on the landholding is not to exceed 600 square metres.
3. The height of a new building for farm gate premises or farm experience premises is not to exceed 10 metres.
4. Buildings should be separated to address fire safety.
5. The hours of operation of farm gate premises are as follows:
    a. 8am – 7pm Sunday to Thursday and public holidays, and
    b. 7am – 9pm Friday and Saturday.
    - *Note:*
        a. *these hours can be extended where Council deems suitable, this is to be included in an application to Council and to include how noise pollution will be mitigated as well as any additional environmental impact.*
        b. *The Codes SEPP allows hours of operation of 8am to 5pm Sunday to Friday and public holidays and 7am to 5pm on Saturdays as exempt and complying development.*
6. The hours of operation of farm experience premises are as follows:
    a. 8am – 7pm Sunday to Thursday and public holidays, and
    b. 7am – 9pm Friday and Saturday.
    - *Note:*
        a. *these hours can be extended where Council deems suitable, this is to be included in an application to Council and to include how noise pollution will be mitigated as well as any additional environmental impact.*
        b. *The Codes SEPP allows hours of operation of 8am to 6pm Sunday to Thursday and public holidays and 8am to midnight Friday and Saturday as exempt and complying development.*

7. The maximum number of visitors for farm gate premises is not to exceed 100 on a land holding at any one time.
8. The maximum number of visitors for farm experience premises is not to exceed 50 on a landholding at any one time.
9. The maximum number of visitors for all farm gate premises and farm experience premises is 100 on a landholding at any one time.
10. Farm experience premises are limited to 52 events per year after 6pm that have amplified noise, there is no limit of the number of events that can occur prior to 6pm.
    - *Note: The Codes SEPP allows up to 52 events per year, which includes up to four events after 6pm if there is amplified noise.*
11. Adequate toilet facilities are to be provided. At least one toilet must be a unisex accessible toilet.
12. Amplified noise for farm gate premises and farm experience premises must be a maximum of 60dB at the property boundary of the closest residential dwelling.

4. Roadside stalls

4.1 Background

A roadside stall is a place or temporary structure used for the retail sale of agricultural produce or hand-crafted goods (or both) produced from the property on which the stall is situated or from an adjacent property. Roadside stalls are generally small-scale structures or buildings and may be a courtesy or honesty box that is not serviced by the owner.

These objectives and controls for roadside stalls apply to stalls associated with a farm.

4.2 Objectives

a. To ensure roadside stalls are in keeping with the rural environment and do not distract road users from safe driving practices.
b. To ensure access to and from roadside stalls occurs in a safe manner.

4.3 Controls

1. The design of a roadside stall should complement the natural landscape.
2. The maximum height of a roadside stall is 2.5 metres.
3. A roadside stall must be located within the boundaries of the landholding.
4. A vehicle access point to a public road is to comply with *AS/NZS2890.1: 2004 Parking facilities- Off-street car parking*.
5. Car parking spaces may be located on a road verge or fully within the boundaries of the property and should be provided for at least three vehicles.
6. The maximum Gross Floor Area of a Roadside stall is 25m2, inline with the *Forbes Local Environmental Plan 2013*.

- Note: Any work required in the road reserve will require approval of the relevant roads authority under the *Roads Act 1993 (Section 138).*